IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) No. OF 2009

IN THE MATTER OF:

Sri. S. Ganesharaju and another Petitioners

Versus

Sri. S. Chandra Raju and 16 others Respondents

AFFIDAVIT

I S. Harsha, aged 34 years, s/o. late S. Ganesharaju, r/o. door No.278, 9th Main Road, 34th Cross, 4th Block, Jayanagar, Bangalore-560 011, do hereby solemnly affirm and state on oath as follows:-

1. I am one of the legal representatives of the deceased S. Ganesharaju who was the 1st petitioner in the aforementioned Special leave Petition. I am fully conversant with the facts of the case. I am authorised by the other legal representatives of the deceased S. Ganesharaju to swear to this affidavit on their behalf as well, which I hereby do.

2. I state that the contents of the application for condonation of delay in filing the application for bringing the legal representatives of the deceased S. Ganesharaju, on record are all true to the best of my personal knowledge; and no part of it is false; and nothing material has been concealed therefrom.

3. Further, the contents of the other IAs filed by us are also similarly true to the best of my knowledge.

Verified at Bangalore on 1st day of December 2010

DEPONENT

No.of corrections

Identified by me

Advocate

SYNOPSIS AND LIST OF DATES

1. The present petition is directed against the order/judgment dated 12.3.2009 of the Hon'ble High Court of Karnataka, Bangalore, in R.P. No.369/2008 on its file, whereby the said Review Petition that the petitioners had filed, praying for reviewing the judgment dated 15.7.2008 passed by the said court in R.F.A. No.1476/2005 on its file, had been sought, interalia, on the ground that the said judgment had been passed on the basis of a consent between the other parties to the said appeal, and without any consent of the petitioners herein and also without the Hon'ble Court dwelling on or dealing with the merits of the said appeal.

2. A brief factual matrix of the case is mentioned hereunder.

2. Sri Sagiraju, son of Sri Patel Subbaraju who was the propositus respecting the land bearing erstwhile Sy. No.22 of Thayappanahalli Village of Uttarahalli Hobli in Bangalore South Taluk, now forming a part of the 4th Block, Jayanagar, Bangalore-11, had three sons by names Sriyuths Patel S. Konaraju, S. Changamaraju and S.Varadaraju. None of them is alive now.

3. The afore-named S.Konaraju had three sons by names

Sriyuths S.Narasaraju, S.Subbaraju and Muniswamiraju.

4. As time and tide would wait for none, even the said three sons of the deceased Konaraju have also attained mortality.

5. Late Muniraju has left behind him respondents 1 to 4 herein, they being his sons and legal-representatives. Smt. Narasamma – the mother of respondents 1 to 4 herein lodged the Regular First Appeal mentioned above, in the year 2005. She is also not alive now. She was the widow of the deceased S. Muniraju. Her branch, interest and estate are, therefore, represented by the respondents 1 to 4 herein who are her sons. The said respondents were the appellants in the aforementioned Regular First Appeal, since their suit for partition had been dismissed on merits by the trial court.

6. The respondents 1 to 4 had instituted a suit in O.S. No.3684/1992 in the Court of the learned 22nd Additional City Civil Judge, Bangalore City, claiming partition of the properties described in the suit. The said properties have been specifically referred to therein as site Nos.290A, 777 and 777A of the erstwhile Thayappanahalli Village now forming a part of the 4th Block, Jayanagar, Bangalore – 560 011, as already mentioned.

7. The suit-claim was stoutly contested by the original defendants 2 to 6, on various grounds.

8. The trial court which framed, in all, seven issues for

consideration on 3.1.2000, however, dismissed the suit by its well-considered judgment dated 13.7.2005 (Annexure-P1), questioning which the respondents 1 to 5 herein and their mother who was then alive, appealed to the Hon'ble High Court, under Section 96 of the Code of Civil Procedure, 1908, in the Regular First Appeal. The Hon'ble High Court, from which the Review Petition No.369/2008 had arisen, while dismissing the appeal, has made certain observations which are contained in paragraphs 9 and 10 of the judgment which, in the most respectful submission of the petitioners herein are erroneous on the face of the record. Therefore, praying for reviewing the same in the interest of justice, for bringing the position of the parties in conformity with the decree of dismissal of the suit and the appeal, lest, the petitioners herein would be subjected to a severe hardship and loss, notwithstanding the suit and the appeal having been dismissed on merits the Review Petition, mentioned above had been filed. Annexure-P2 is a copy of the said judgment passed in the Regular First Appeal. Annexure-P3 is a copy of the said Review Petition.

8. In the back drop mentioned above, and quite naturally aggrieved by the said judgment and in particular, the observations contained in paragraphs 9 and 10 thereof the petitioners herein who had succeeded in the suit before the trial court and who are too badly affected by the said – "consent judgment" passed without their consent and also without hearing them filed the review petition from which this Special Leave Petition has arisen.

9. Notice of the petition having been ordered to be issued to the respondents, they were served therewith. Some of the respondents herein appeared in pursuance of the notice issued in the Review Petition, but no one filed any objections thereto.

10. Since the Review Petition had been filed after the period of limitation prescribed therefor and since they could not present the said petition in time, they being unaware of such a judgment having been passed by "consent" they had sought for condoning the delay of 53 days in filing the said petition. Annexure-P4 is a copy of the application for condonation of delay and Annexure-P5 is a copy of the affidavit filed in support thereof. They placed reliance on the ruling of this Hon'ble Court in the case of State of Bihar Vs. Kameshwar Prasad Singh reported in 2000 (9) S.C. C. page 94 = (AIR 2000 S.C. page 2306), and in particular, paragraphs 13 and 14 thereof, to the effect that, dismissing appeals on technical grounds of limitation would not, in any way, advanse the interest of justice, but would admittedly result in a failure of justice, as the judgment impugned was sure to affect the petitioners herein; and that technicalities of law should not prevent the courts from doing substantial justice and undoing the illegalities perpetrated on the basis of the judgment questioned. It was also submitted that the paramount consideration in dealing with such a situation would be to safeguard the interest of all the litigants and that courts should decide the matters before them on merits, unless the case is hopelessly without merit. It was also submitted, with reference to paragraphs 11 and 12 of the said

ruling that, the power conferred on courts to condone delay is intended to enable them to do substantial justice, and that, the judiciary is respected, as stated by this Hon'ble Court in the case of the Collector, Land Acquisition Vs. Katiji reported 1987 (2) SCC at page 107 "not on account of its power to legalise injustice on technical grounds, but because it is capable of removing injustice, and is expected to do so", in support of their prayer for condoning the unavoidable delay that had crept in, in filing the said Review Petition.

11. Even though none of the respondents objected to the condonation of delay in filing the petition, and none of the respondents filed any objections or counter to the application for condonation of delay, the Hon'ble High Court has quit unfortunately rejected the said application as a consequence whereof the Review Petition has also been rejected/dismissed, without dealing with the merits thereof. Quite highly aggrieved thereby this petition, praying for Special Leave to appeal therefrom is presented by the petitioners.

10. It is most respectfully submitted that:

(i) in view of the fact that the judgment dated 15.7.2008 a review of which had been prayed for by the petitioner had been passed merely recording the consent of the respondents interse, and without the petitioners being consenting parties thereto and also without the Regular First Appeal having been dealt with on its merits;

(ii) the fact that the petitioners herein had succeeded in the original suit from which the aforementioned appeal had arisen and that before reversing the judgment and decree of the trial court the petitioners ought to have been heard on the merits of the case;

(iii) the consent of the other parties to the appeal whose interest was in conflict with that of the petitioners herein, for such a judgment being rendered in the appeal being not binding on the petitioners herein who are not consenting parties thereto;

(iv) the fact that the delay of 53 days was not intentional and the same has been duly explained in the affidavit filed in support of the application for condonation of delay, the statements made wherein were not even disputed or contested by the respondents; and

(v) that technicalities of law ought not to affect substantial justice, the order/judgment impugned herein would richly commend being set aside by this Hon'ble Court in exercise of its jurisdiction under Article 136 of the Constitution of India, lest, the severe injury and loss that has occasioned to the petitioners on account of the decree passed by the trial court having been reversed without even the said findings being dealt with on its merits will remain without any redressal.

LIST OF DATES:

14.3.1934	Late Patel Konaraju sold in favour of a certain Venkataraju, the lands bearing Survey Nos 22 and 23 of the erstwhile Thyappanahalli Village, Uttarahalli Hobli, Bangalore South Taluk.
6.9.1938	Late Narasaraju purchased the said lands from the aforenamed Venkataraju.
3.1.1975	The erstwhile City Improvement Trust Board of Bangalore, its successor being the Bangalore Development Authority executed a lease-cum-sale deed in favour of Lakshmamma, respecting the sites bearing Nos. 290 A, at the request of Narasaraju Smt. Lakshmamma being his daughter.
5.9.1984	Muniswamy Raju died.
11.9.1984	S. Chandraraju and others filed a Miscellaneous Application No.872/1984 in the court of the learned Civil Judge, Bangalore, praying for setting aside the order of dismissal of O.S. No.2951/1980, ordered on 11.9.1984.

28.3.1987 The aforementioned Miscellaneous Application was dismissed.

13.11.1991/
23.3.1992 The appeal from the order of dismissal of the Miscellaneous Application was also dismissed by the Hon'ble High Court of Karnataka, Bangalore, in M.F.A, No.2665 of 1987 on its file.

5.6.1992 O.S. No.3684/1992 was filed by S. Chandraraju and others, in the court of the learned City Civil Judge, Bangalore, for a declaration that the plaintiffs were together entitled to 1/3rd share in the suit schedule properties and for partition and separate possession thereof.

11.6.1992 The Bangalore Development Authority, as the successor of the erstwhile City Improvement Trust Board, Bangalore, executed an absolute sale deed in favour of the said Lakshmamma.

Meanwhile Original Suit No.1994/1994 of 1978 had been filed by Muniswamy Raju, father of S. Chandraraju, in the court of the learned 2nd Additional Civil Judge, Bangalore, on O.S. No.1994/1978 was thereafter renumbered as O.S. No.2951/1980. The said suit was dismissed on 11.9.1984, as already stated.

25.1.1999	Written Statement of S. Ganesh Raju s/o. late Narasaraju and others was filed in the said suit.
3.1.2000	Eight issues in O.S. No.3684/1992 were framed.
13.7.2005	The said Original Suit was dismissed by a considered judgment, the duration of the suit being 13 years 1 month and 8 days.
15.7.2008	R.F.A. No.1476/2005 filed by the respondents, questioning the aforesaid judgment and decree dated 13.7.2005 was disposed of by a "compromise" collusively entered into amongst the defendants themselves without hearing the petitioners herein, and the petitioners being not consenting parties thereto.
23.7.2008	The petitioners applied for a certified copy of the judgment and decree and rendered in the said appeal.
5.8.2008	The certified copy applied for was delivered unto the petitioners.
9.8.2008	The petitioners approached the Bangalore Development Authority with a representation not to reconvey the properties in question in favour

	of the respondents, pursuant to the aforementioned judgment.
13.10.2008	Review Petition No. 369/2008 from which the present Special Leave Petition has arisen was filed by the petitioners, alongwith an application under Section 5 of the Indian Limitation Act, 1963, praying for condonation of delay in filing the said Review Petition.
20.11.2008	Notice of the petition was ordered to be issued to the respondents.
18.12.2008	The consideration of the Review Petition was adjourned/
4.2.2009	deferred.
12.3.2009	The application for condonation of the delay of 53 days in filing the review petition, having been dismissed, as a consequence thereof the Review Petition has also been dismissed.
13.4.2009	Special Leave Petition filed.

IN THE SUPREME COURT OF INDIA AT NEW DELHI

(Order XVI Rule 4(1)(a)
Civil Appeal Jurisdiction)

Special Leave Petition

(Under Article 136 of the Constitution of India)

With prayer for interim relief

Special Leave Petition (Civil) No._____/2008

POSITIONS OF PARTIES

	In the Trial Court	**In the High Court**	**In this Court**
In the matter of :-			
1. Sri S.Ganesharaju, s/o. S.Narasaraju 2. Sri S.Krishnamurthyraju, s/o. S.Narasaraju (majors, r/o. door No.278, 9th Main Road, 34th Cross, 4th Block, Jayanagar, Bangalore-560 011).	Defendants	Respondents/ Petitioners	
		Petitioners in R.F.A.	
And:-			
1. Sri S.Chandra Raju, aged 55 years, 2. Sri S.Venugopal Raju, aged about 52 years, 3. Sri S.Nagaraju,			

aged 50 years

4. Sri Bala Raju,
aged 48 years

(Respondents 1 to 4 are
Sons of late S.Muniswamy Raju,
Residents of Door No.518,
9th Main Road,
33rd "A" Cross,
4th Block, Jayanagar,
Bangalore-560 011).

5. Smt. Lakshmamma,
d/o. late late S.Subba Raju,
aged 75 years

6. Sri Krishnama Raju,
s/o. late late S.Subba Raju,
aged 58 years.

7. Smt. Kanthamma,
w/o. Swamy Raju,
aged 58 years.

8. Sri Venkata Raju,
s/o. late S.Subba Raju,
aged 57 years.

9. Smt. Leelavathi,
w/o. late S. Sree Ramulu Raju,
aged 30 years.

10. Master Naveen Kumar,
s/o. late S.Sree Ramulu Raju,
minor, represented by his mother
and natural guardian, the 10th
respondent Smt. Leelavathi

11. Kum. Devi,
d/o. late S. Sree Ramulu Raju
minor represented by her natural

Guardian Smt. Leelavathi

12. Sri Anantha Raju,
s/o. late S. Subba Raju,
aged 42 years.

13. Sri Jayaraju,
s/o. late S. Subba Raju,
aged 38 years
(Respondents 5 to 13 are residing
at Door No.1584, 37th Cross,
11th Main, 4th T Block,
Jayanagar, Bangalore-41).

14. Smt. Jayamma,
major,w/o. Sri Bangara Raju,
r/o. Door No.8-B, HB Samaja Road,
Link, Out House,
Behind BCC,
Basavanagudi,
Bangalore-560 004.

15. Smt. Lakshmamma,
major,
w/o. M.Subba Raju,
r/o. Door No.61, AG's Layout,
New BEL Road,
Bangalore-560 054.

16. Smt. Parvathi,
w/o. late S.Subbaraju

17. Master Teju,
aged about 13 years,
minor, s/o. late S. Subbaraju,
represented by his mother
and natural guardian
Smt. Parvathi, the 17th respondent.

(Respondents 16 to 17 are

Residents of Door No.278, 9th main Road, 34th Cross, 4th Block, Jayanagar, Bangalore-11).	Plaintiffs	Appellants/ Respondents in Review Petition	Respondents

PETITION FOR SPECIAL LEAVE UNDER ARTICLE 136 OF THE CONSTITUTION OF INDIA READ WITH ORDER XVI OF THE SUPREME COURT RULES.

To,

The Hon'ble Chief Justice of India,
and his Companion Justices of the
Hon'ble Supreme Court of India,
New Delhi.

The humble petition of the above petitioner named

1. MOST RESPECTFULLY SHOWETH AS FOLLOWS:-

That this Special leave Petition is directed against the judgment dated the 12th day of March 2009, passed by the Hon'ble High Court of Karnataka at Bangalore, in R.P No. 369/2008 on its file, whereby the said petition filed by the petitioners herein has been dismissed.

2. QUESTIONS OF LAW :-

(i). Regard being had to the incontrovertible fact that the petitioners herein who were the defendants in the Original Suit from which the R.F.A. No. 1476/2005 had arisen were not

consenting-parties to the judgment dated 15.7.2008 by which the judgment and decree passed by the Trial Court stood reversed, was it not necessary for the Hon'ble High Court to correct the error which was apparent on the face of its record by considering the Review Petition of the petitioners herein, on its merits, particularly, when the respondents had not even objected to the said petition or to the inadvertent delay of 53 days which had crept in filing the said petition?

(iii). Having directed notice of the petition and of the application for condonation of delay is the Hon'ble High Court justified in dismissing the Review Petition by declining to condone the delay of 53 days in filing the same, particularly when the said delay of 53 days had been quite satisfactorily explained by the petitioners and the respondents had not disputed the correctness of the cause for the delay that the petitioners had shown?

(iv) In the facts and circumstances of the case is the Hon'ble High Court justified in rejecting the application for condonation of delay of 53 days, and consequently dismissing the Review Petition itself without examining the merits of the said petition?

(v) Is the Hon'ble High Court justified in not following the binding ruling of this Hon'ble Court rendered in the case of the State of Bihar Vs. Kameshwar Prasad Singh reported in 2000 (9) S.C.C. page 94 (AIR 2000 S.C. page 2306), which was strenuously pressed into service for condoning the delay in filing the Review Petition?

(vi) Is not the approach of the Hon'ble High Court towards the case grossly opposed to the ratio of the ruling of this Hon'ble Court in the aforementioned reported case that court must grapple with the real issues on their merits and should not try to legalise any illegality, on technicalities.

3. DECLARATION IN TERMS OF RULE 4(2) :-

The petitioners state that no other petition seeking leave to appeal has been filed by either of them against the judgment questioned in this Special Leave Petition, previously.

4. DECLARATION IN TERMS OF RULE 6 :-

The Annexures P1 to_____ produced with the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave Petition has arisen.

5. GROUNDS :-

Leave to appeal is sought by the petitioners, on the following grounds.

I. The rejection of the application for condonation of delay of 53 days is wholly erroneous and has occasioned of colossal failure of the petitioners on whom the judgment dated 15.7.2008 rendered in R..F.A. No.1476/2005 has been clamped, without the said appeal having been considered on its merits and the petitioners being not parties to the consent that has been recorded in the said judgment.

II. Regard being had to the incontrovertible fact that the judgment and decree of the trial court have been reversed in appeal, without going into the merits thereof but solely on the basis of the consent interse of the plaintiff's respondents, it was necessary for the Hon'ble High court to correct its error and review the judgment dated 15.7.2008, by entering upon the merits of the Review Petition and also of the Regular First Appeal.

III. Having regard to the cogent and convincing explanation that the petitioners had offered for the inadvertent and unavoidable delay of 53 days in filing the Review Petition and the respondents having not contested the cause that the petitioners had duly shown for the delay, the Hon'ble High Court is in grave error in dismissing the application for condonation of delay, and consequently in dismissing the Review Petition as well.

IV. The dismissal of the Review Petition has occasioned a grave failure of justice to the petitioners, who are subjected to a severe loss on account of the said judgment which has been rendered without hearing them on the merits of the appeal.

6. GROUNDS FOR INTERIM RELIEF :-

(i) In view of the observations which have been made in the judgment dated 15.7.2008, placing a total moratorium on the defendants in general laying any claim in respect of site Nos.777 and 777A involved in the proceedings, the plaintiffs and the 4th defendant have hurriedly approached the Bangalore Development Authority for re-conveying site No.290A in favour of the 4th defendant, and the other two sites bearing Nos.777 and 777A respectively in favour of the plaintiffs and defendants 1 (a) to (g) respectively. Objections thereto have been filed by the petitioners, before the Commissioner, Bangalore Development Authority, on 9.8.2008 to which has been appended, interalia, a copy of the order dated 28.8.2006 rendered by the Hon'ble High Court in W.P. No.4284/2006, the order having a bearing on the false and collusive claim that the respondents have made.

(II) The Bangalore Development Authority has been proceeding to reconvey the properties in question, totally affecting the interest in of the petitioners, solely in view of the observations contained in the judgment rendered in the appeal. If any such re-conveyance is accomplished hurriedly and during the pendency of the present Special Leave Petition, the same will result in a total miscarriage of justice to the petitioners in addition to the same leading to

multiplicity of proceedings. Therefore, it is just and proper that this Hon'ble Court be pleased to grant an interim order as prayed for herein, in the interest of justice and equity.

(iii) Further, taking advantage of the decree dated 15.7.2008 and the dismissal of the Review Petition the respondents have been seeking to alter the nature, position and the status-quo in respect of the properties in question, besides attempting to get the khatha of the said properties effected in their respective names from the Bangalore Development Authority, Bangalore. Unless prevented the respondents will act detrimental to the interest of the petitions, during the pendency of this petition.

7. MAIN PRAYER :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

a) GRANT Special Leave to appeal from the final judgment/ORDER dated 12.3.2009 passed by the Hon'ble High Court of Karnataka, Bangalore, in R.P. No. 369/2008 on its file;

and

b) PASS such other or further orders as this Hon'ble Court may deem just and proper in the facts and circumstances of the case, including the

award of the costs of the proceedings althrough, and in the interest of justice and equity.

8. PRAYER FOR INTERIM RELIEF :-

It is, therefore, most respectfully prayed that your Lordships may graciously be pleased to:

(a) ***grant*** an ad-interim order of stay of the judgment dated 15.7.2008 passed by the Hon'ble High Court of Karnataka at Bangalore in R.F.A. No.1476/2005, and all further proceedings based on the said judgment; and

(b) ***pass*** such other order or orders which this Hon'ble Court may deem fit and proper in the interest of justice.

New Delhi
Date:

Advocate for the Petitioners

IN THE SUPREME COURT OF INDIA

(CIVIL APPELLATE JURISDICTION)

SPECIAL LEAVE PETITION (CIVIL) No. 26537-26538 OF 2009

IN THE MATTER OF:

Sri. S. Ganesharaju and another
Petitioners

Versus

Smt. Narasamma since
deceased by LRs and others Respondents

COUNTER AFFIDAVIT FILED BY RESPONDENTS 16 AND 17 TO THE SPECIAL LEAVE PETITION

I, Smt. Parvathi, w/o. late S. Subbaraju, r/o. Door No.278, 9th Main road, 34th Cross, 4th Block, Jayanagar, Bangalore – 560 011 – the 16th respondent in the aforementioned Special Leave Petitions do hereby solemnly affirm and state on oath as follows; as the counter affidavit of myself and my minor-son master Teju – the 17th respondent, myself being her mother and natural guardian:-

1. I am fully conversant to the facts of the case.

2. The order appealed from, as also the contents of the Memorandum of Special Leave Petition have all been duly explained to me in Kannada language which is well known to me. I have understood the same and state that being thus fully conversant with the facts of the case, and the contents and nature of the order appealed from.

3. I respectfully submit that it is true that the petitioners were not consenting-parties to the judgment dated 15.7.2008 passed in

R.F.A. No.1476/2005. They had neither been notified nor had been represented in the said proceedings and had not thus accorded any consent for such an order/decree being passed in the appeal.

4. Eventhough I and the minor son (the 17th respondent) had been served with the court notice in the Review Petition, we did not contest the said petition since the claim made by the petitioners for reviewing the judgment dated 15.7.2008 by condoning the delay of 53 days in doing so, was just, proper and un-exceptionable because the said judgment has been passed against them behind their back and based merely on the internal collusive arrangement that the parties who have been benefited thereby had made amongst themselves.

5. Since the order appealed from in the aforementioned Special Leave Petitions cannot be sustained in law for the reasons which have been stated by the petitioners, in the Memorandum of Special Leave Petition, I respectfully submit that the orders appealed from may be reversed by this Hon'ble Court, and the proceedings remanded to the Hon'ble High Court of Karnataka, Bangalore, for a fresh adjudication of the Regular First Appeal, on its merits, after affording to all the parties concerned the required reasonable opportunity of having their say in the matter. In such an event I also desire to participate in the proceedings before the said Court, and to have my case put forth before the said court, through my learned counsel, for protecting my interest as also the

interest, of the 17th respondent herein in respect of the parties involved in the proceedings.

6. I most respectfully submit that there is only a comity of interest between the petitioners and me and the 17th respondent, and hence, there is no collusion between or amongst ourselves.

7. Since justice must not only be done, but must also seem to have been done, both having not been done in the instant case I respectfully submit that this Hon'ble Court be graciously pleased to set aside the orders appealed from and remand the proceedings to the Hon'ble High Court of Karnataka, Bangalore, for the R.F.A. No.1476/2005 on its file being heard and decided afresh and in accordance with law, in the interest of justice and equity.

8. The contents of this counter-affidavit have also been duly explained to me in Kannada Language. I have fully understood the same and state that the same are true and correct.

9. The stand taken by me in this counter-affidavit would be conducive to the interest of the 17th respondent also, who is my minor son.

10. I swear and submit accordingly.

Bangalore DEPONENT
Date: 27.1.2010

No.of corrections

Identified by me

Advocate

IN THE SUPREME COURT OF INDIA AT NEW DELHI

S.L.P. NO._____/2009 (Civil)

Between:

Ganesharaju S. and others. …Petitioners

And:

Smt. Laxmamma and others. …Respondents

I.A. FOR BRINGING LEGAL REPRESENTATIVES OF THE DECEASED FIRST PETITIONER, ON RECORD.

TO,

THE HON'BLE CHIEF JUSTIVE OF INDIA AND HIS COMPANION JUDGES OF THE HON'BLE SUPREME COURT OF INDIA.

The humble petition of the petitioners above-named respectfully showeth :-

APPLICANTS :-

1. Smt. Dakshayini,

w/o. late Ganesha Raju S.,
aged 52 years.

2. Sri S. Harsha,

s/o. late Ganesha Raju S.,
aged 34 years.

3. Smt. Lakshmi,

Aged 31 years,
w/o. Sri Chandrashekara Raju.

(All the applicants are residents of Door No.278,
34th Cross, 9th Main Road, 4th Block,
Jayanagar, Bangalore-560 011).

I.A. NO._____/10 UNDER ORDER 22 RULE 4 OF THE COCE OF CIVIL PROCEDURE, 1908.

The applicants above-named respectfully submit as follows:-

During the pendency of the afore-mentioned Special Leave Petitions which are pending adjudication before this Hon'ble Court, the 1st petitioner Ganesha Raju S. has deceased on 2.5.2010 leaving behind him the applicants named above who are respectively his wife, son and daughter who are not only the legal-representatives and heirs of the deceased but are also the legatees under the registered Last WILL and testament dated_____ of the deceased.

Since the cause of action for the petition survives to the applicants who are vitally interested in the subject-matter of the proceedings, they are entitled to prosecute the petitions in their rights as the legal-representatives and legatees as mentioned above. They respectfully pray that they be ordered to be brought on record as the legal-representatives of the deceased 1st petitioner for enabling them to come on record and pursue the proceedings.

Barring the applicants named above, no other person is entitled to the estate of the deceased Ganesha Raju S. and hence no one other than the applicants herein is entitled to succeed to his estate or to come on record in the afore-mentioned Special Leave Petitions, in the place of the said Ganesha Raju S.

Wherefore, it is respectfully prayed that this Hon'ble Court be pleased to :-

Permit the applicants to come on record as the legal-representatives of the deceased 1st petitioner, in the interest of justice and equity.

New Delhi
Date:

ADVOCATE FOR THE APPLICANTS/
PETITIONER

IN THE SUPREME COURT OF INDIA AT NEW DELHI

S.L.P. NO. /2009 (Civil)

Between:
Ganesharaju S. and others. …Petitioners

And:
Smt. Laxmamma and others. …Respondents

AFFIDAVIT

I, Lakshmi, aged 31 years, w/o. Sri Chandrashekara Raju, resident of Door No.278, 34th Cross, 9th Main Road, 4th Block, Jayanagar, Bangalore-560 011).
I am one of the applicants in the accompanying application for being brought on record as the legal-representatives of the deceased first petitioner. I am fully conversant with the facts of the case.

I state that the contents of paragraphs 1 to of the accompanying application for being brought on record as the legal-representatives of the deceased Ganesha Raju S. (the 1st petitioner) are all true to the best of my personal-knowledge and sincere belief. I have read the contents of the said application.

The documents filed with the application as Annexure-P1 is a true copy of the registered Last WILL and testament that has been executed and left behind by the deceased 1st petitioner.

A copy of the Death Certificate issued by the Chief Registrar of Births and Deaths in Karnataka is filed herewith as Annexure- from which it is evident that the 1st petitioner died on 2.5.2010 at Bangalore Annexure- is a true coy of the registered Last WILL and testament.

I swear accordingly.

New Delhi DEPONENT
Date:
Identified by me:
Advocate
No. of corrections: